

{Variable} input · [Computable] act / derived · «if ... end if» condition · struck excluded · word-for-word dissection; the law is reconstructable from the substrate

§223 · Bodily harm

BodilyHarm · provenance StGB 223 · (1) encoded; penalty and attempt struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Whoever physically maltreats another person or damages the health of another person shall be punished with imprisonment for up to five years or a fine. (2) The attempt is punishable.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

«if BodilyHarm is true»(1) {Actor} who «if {PhysicallyMaltreats} is true»physically maltreats another person «end if» «if {DamagesHealth} is true»or damages the health of another person «end if» ~~shall be punished with imprisonment for up to five years or a fine. (2) The attempt is punishable.~~«end if»

ANNEXES

COMPUTABLES

[BodilyHarm] = PhysicallyMaltreats is true or DamagesHealth is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
BDH-R01	ACT	Actor		PhysicallyMaltreats is true
BDH-R02	ACT	Actor		DamagesHealth is true
BDH-R00	ACT	Actor	scope note: the two conducts gated individually per the encoding principles, disjunction in the composite; [BodilyHarm] is the act element to which the Section 228 consent exception attaches and the reference target of the Section 129a catalogue text; Section 224 has moved to Excluded, so its in-corpus mentions resolve as input only	BodilyHarm is true
BDH-P0	PROHIBITION	Actor	not realise	not BodilyHarm

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	{Actor}	–	in scope
physically maltreats	Merkmal	{PhysicallyMaltreats}	BDH-R01	is true
damages the health	Merkmal	{DamagesHealth}	BDH-R02	is true
penalty; (2) attempt	sanction / attempt	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{DamagesHealth}	Boolean	true / false / unknown	Session	{Actor} damages the health of another person
{PhysicallyMaltreats}	Boolean	true / false / unknown	Session	{Actor} physically maltreats another person

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} physically maltreats another person or {Actor} damages the health of another person.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[BodilyHarm]	PhysicallyMaltreats, DamagesHealth	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (BDH-P0)	[BodilyHarm]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)
├ {Actor}
├ {DamagesHealth}
└ {PhysicallyMaltreats}
↓
PHASE 2: evaluate act / intermediate computables
↓
PHASE 3: evaluate the objective conditions
└ [BodilyHarm] = PhysicallyMaltreats is true or DamagesHealth is true
↓
VERDICT (PrimeRule)
├ [BodilyHarm] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
└ [BodilyHarm] is false → not realised

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [BodilyHarm] depends on ; none refer back to [BodilyHarm]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{DamagesHealth}	Element/Datum: {Actor} damages the health of another person.?	Boolean
Q3	Session	{PhysicallyMaltreats}	Element/Datum: {Actor} physically maltreats another person.?	Boolean

FLAGS

SCOPE Paragraph 1's two conducts; penalty and attempt struck per the standing conventions.

CONSUMERS The §228 consent exception attaches to this act element; the §129a catalogue text references §223. §224 has moved to Excluded; its catalogue mentions resolve as input only, a documentation note for the master.

TREATMENT §223 Operomise; §224, §226, §226a, §227 Excluded.

§225 · Maltreatment of persons under one's care

AbuseOfPersonUnderCare · provenance StGB 225 · (1) encoded; (2)-(4) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Whoever torments or roughly maltreats a person under eighteen years or a person defenceless owing to frailty or illness who 1. is under his care or custody, 2. belongs to his household, 3. has been left in his power by the person obliged to provide care, or 4. is subordinate to him within a service or work relationship, or whoever damages the health of such a person through malicious neglect of his duty to care for the person, shall be punished with imprisonment for six months to ten years. (2) [Struck: attempt.] (3) [Struck: endangerment aggravation.] (4) [Struck: less serious cases.]

OPEROME MARKUP - ORIGINAL TEXT ENCODED

«if AbuseOfPersonUnderCare is true»(1) {Actor} who «if {Torments} is true»torments «end if» «if {RoughlyMaltreats} is true»or roughly maltreats «end if» «if {VictimUnderEighteen} is true»a person under eighteen years «end if» «if {DefencelessThroughFrailty} is true»or a person defenceless owing to frailty «end if» «if {DefencelessThroughIllness} is true»or illness «end if» who 1. «if {UnderCare} is true»is under the care «end if» «if {UnderCustody} is true»or custody of {Actor} «end if», 2. «if {BelongsToHousehold} is true»belongs to the household of {Actor} «end if», 3. «if {LeftInPower} is true»has been left in the power of {Actor} by the person obliged to provide care «end if», or 4. «if {SubordinateInWork} is true»is subordinate to {Actor} within a service or work relationship «end if», or who «if {MaliciousNeglectHealthDamage} is true»damages the health of such a person through malicious neglect of the duty to care for the person «end if» shall be punished with imprisonment for six months to ten years. (2) Attempt. (3) Endangerment aggravation. (4) Less serious cases.«end if»

ANNEXES

COMPUTABLES

[ProtectedVictim] = VictimUnderEighteen is true or DefencelessThroughFrailty is true or DefencelessThroughIllness is true

[AbusiveConduct] = Torments is true or RoughlyMaltreats is true or MaliciousNeglectHealthDamage is true

[CareRelationship] = UnderCare is true or UnderCustody is true or BelongsToHousehold is true or LeftInPower is true or SubordinateInWork is true

[AbuseOfPersonUnderCare] = ProtectedVictim is true and CareRelationship is true and AbusiveConduct is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
APU-R01	CONDITION	None		VictimUnderEighteen is true
APU-R02	CONDITION	None		DefencelessThroughFrailty is true
APU-R03	CONDITION	None		DefencelessThroughIllness is true
APU-R04	CONDITION	None		UnderCare is true
APU-R05	CONDITION	None		UnderCustody is true
APU-R06	CONDITION	None		BelongsToHousehold is true
APU-R07	CONDITION	None		LeftInPower is true
APU-R08	CONDITION	None		SubordinateInWork is true
APU-R09	ACT	Actor		Torments is true
APU-R10	ACT	Actor		RoughlyMaltreats is true

ID	KIND	ACTOR	VERB / PREDICATE	BODY
CJU-R01	CONDITION	None		ConsentGiven is true
CJU-R02	CONDITION	None		ContraBonosMores is true
CJU-R00	CONDITION	None	exception (whole provision live, zero strikes): whoever performs a bodily harm with the consent of the injured person acts unlawfully only where the act offends good morals despite the consent; [ConsentJustification] is the third exception act consumed by the Section 13 master rule alongside Sections 32 and 34, limited by the Section 35 counter-exception; the act element resolves against [BodilyHarm] of the Section 223 scope in this carrier; the good-morals threshold is evaluative residue flagged for escalation	ConsentJustification is true

CJU-P0	PROHIBITION	Actor	not realise	not ConsentJustification
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TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever performs a bodily harm	act element (cross-scope)	– resolves against [BodilyHarm], §223 –	CJU-R00	in scope
with the consent of the injured person	Merkmal	{ConsentGiven}	CJU-R01	is true
offends good morals despite the consent	Grenze (evaluative)	{ContraBonosMores}	CJU-R02	is false

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{ConsentGiven}	Boolean	true / false / unknown	Session	the injured person consents to the bodily harm
{ContraBonosMores}	Boolean	true / false / unknown	Session	the act offends good morals despite the consent

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: the injured person consents to the bodily harm and not ContraBonosMores.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ConsentJustification]	ConsentGiven, ContraBonosMores	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (CJU-P0)	[ConsentJustification]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)
 ├ {Actor}
 ├ {ConsentGiven}
 └ {ContraBonosMores}
↓
PHASE 2: evaluate act / intermediate computables
↓
PHASE 3: evaluate the objective conditions
 └ [ConsentJustification] = ConsentGiven is true and not ContraBonosMores
↓
VERDICT (PrimeRule)
 ├ [ConsentJustification] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
 └ [ConsentJustification] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [ConsentJustification] depends on ; none refer back to [ConsentJustification]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{ConsentGiven}	Element/Datum: the injured person consents to the bodily harm.?	Boolean
Q3	Session	{ContraBonosMores}	Element/Datum: the act offends good morals despite the consent.?	Boolean

FLAGS

SCOPE Whole provision live, zero strikes: an exception scope, the bodily-integrity counterpart of §32 and §34. Consumed by the §13 master rule's {ExceptionActApplies}; limited by the §35 counter-exception.

EVALUATIVE RESIDUE "gute Sitten" is the open-textured limit of the provision: consent decides cleanly; whether the act offends good morals despite it escalates. The structure compiles, the threshold does not pretend to.

CROSS-SCOPE REFERENCE The act element resolves against [BodilyHarm] of the §223 scope in this carrier.

TREATMENT §228 is Operomise-tagged; §229, §230, §231 are Excluded.